

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Sweeney	Team: Squad #08	CCRB Case #: 201412674	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 12/17/2014 5:35 PM	Location of Incident: 198 Nagle Avenue	18 Mo. SOL 6/17/2016	Precinct: 34
Date/Time CV Reported Wed, 12/17/2014 10:28 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/23/2014 2:11 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Dima	01682	948894	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dennis Frey	07600	948987	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vincent Dima	Discourtesy: PO Vincent Dima spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Vincent Dima	Abuse: PO Vincent Dima searched the car in which § 87(2)(b) was an occupant.	B . Unsubstantiated

Case Summary

On December 17, 2014, at 5:35 p.m., in front of 198 Nagle Avenue in Manhattan, § 87(2)(b) was stopped by PO Vincent Dima and PO Dennis Frey of the 34th Precinct. PO Dima asked § 87(2)(b) to step out of the vehicle, and he complied. § 87(2)(b) allegedly stated that he had a knife on his person that he uses for his job as a construction worker (enc. 6D-6F). PO Dima allegedly told him to “Shut the fuck up” (**Allegation A**). PO Dima allegedly searched § 87(2)(b)'s car, including in the center console, the glove compartment, trunk, and underneath the seats (**Allegation B**). § 87(2)(b) was taken to the 34th Precinct stationhouse and was released with a DAT for § 87(2)(b) (enc. 7G).

Mediation, Civil and Criminal Histories

- On January 16, 2015, § 87(2)(b) was presented with mediation, and he accepted (enc. 6G). § 87(2)(g)

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- PO Dima has eight cases with eighteen allegations, none of which have been substantiated. Discourtesy allegations were made against him in two cases; 201405990 remains open and 201301665 was unsubstantiated (enc. 1A-1B).
- This is § 87(2)(b)'s first CCRB complaint (enc. 2A).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Allegation A—PO Vincent Dima spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that he said, “Why are you doing this to me? I am going to work!” and PO Dima responded, “Shut the fuck up” (enc. 6D-6F).

PO Dima denied telling § 87(2)(b) to “Shut the fuck up” (enc. 7K) and PO Frey never said this or heard PO Dima say this (enc. 8E).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B—PO Vincent Dima searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that approximately 20 seconds after PO Dima asked for his license, which he provided, PO Dima asked him to step out of the car. When § 87(2)(b) did so, he told PO Dima that he had a knife that he uses for work. It was not a gravity knife. § 87(2)(b) handed the knife to PO Dima, who put it in his pocket. PO Dima told § 87(2)(b) to stand at the back of

his vehicle with PO Frey. PO Dima opened all of the car doors and the trunk. § 87(2)(b) saw him search underneath the seats, and heard him open the glove compartment and the center console. § 87(2)(b) estimated that the search lasted approximately two minutes. PO Dima never tried to obtain § 87(2)(b)'s consent in any way, and § 87(2)(b) never provided his consent. He responded to PO Dima's search of his car by asking the officers why they were doing this. Nothing was found in the car (enc. 6D-6F).

PO Dima stated that as he approached § 87(2)(b)'s vehicle, § 87(2)(b) rolled down his windows, and PO Dima saw him reach with one hand underneath his seat approximately two times. This made PO Dima suspect that § 87(2)(b) might have stuffed contraband underneath the seat. PO Dima said, "Is there anything in the vehicle that we should know about?" and § 87(2)(b) said there was not. PO Dima then asked if he could search the vehicle for his safety to ensure that there were no weapons inside. § 87(2)(b) said, "Go right ahead." PO Dima asked § 87(2)(b) to exit the vehicle and § 87(2)(b) complied. § 87(2)(b) said, "Wait a minute, officer; I forgot—I have a blade on me," and lifted up his shirt to reveal a knife clipped to the right side of his belt. PO Dima gave the knife to PO Frey, who performed a field test, which revealed it was a gravity knife. PO Dima decided to search the vehicle to see if there were any other weapons inside. PO Dima opened the driver's side door and only searched in the "lungeable/grabbable areas" surrounding the driver's seat, such as underneath the seat and between the seat and center console. He did not search anywhere else in the car, including the center console or the trunk. The search lasted approximately two to five minutes, and when it was concluded, PO Dima placed § 87(2)(b) under arrest for § 87(2)(b) (enc. 7J-7K).

PO Frey could not see § 87(2)(b) reach for anything because he could not see through § 87(2)(b)'s tinted front passenger's side window. There was nothing that led him to suspect that there was any weapon in the car, and nothing about § 87(2)(b) made him feel unsafe. PO Dima recovered the knife from § 87(2)(b) but PO Frey could not recall how he did so. After § 87(2)(b) stepped out of the vehicle, PO Dima showed the knife to PO Frey. PO Frey could not recall if he touched the knife or examined it in any way, or if PO Dima examined the knife to determine if it was a gravity knife. PO Frey did not recall if PO Dima entered or searched § 87(2)(b)'s vehicle. He could not recall if § 87(2)(b) was asked if the officers could search his car (enc. 8D-8E).

§ 87(2)(g)

_____. It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

Pod: 8

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date